

Chemical Test Refusals (Also see Chapter 9: Alcohol and Other Drugs)

- Chemical test refusal, drivers over age 21: minimum one-year revocation
- Chemical test refusal, drivers over age 21, within five years of a prior refusal revocation or any alcohol or drug-related violation: minimum 18-month revocation
- Chemical test refusal, drivers under age 21, first time: minimum one-year revocation
- Chemical test refusal, drivers under age 21, second time: Minimum revocation until age 21 or one year, whichever is longer
- Zero Tolerance test refusal: Minimum one-year revocation

Drivers Under Age 21

If you are under age 21 when arrested, conviction for any of the alcohol or drug-related violations listed above will result in a minimum one-year revocation. A second violation while under age 21 requires a revocation for one year or until you reach age 21, whichever is longer. These penalties apply to youthful offenders, or if you were arrested or convicted out of state (see Traffic Tickets Received Out-Of-State).

Under the state's "Zero Tolerance Law," a driver under age 21 will have their license suspended for six months if found to have a BAC from .02 to .07. A .02 BAC could occur from only one drink. For a second Zero Tolerance violation, the driver license will be revoked for one year or until the driver turns age 21, whichever is longer.

Speeding and Other Violations

Your driver license will be revoked for at least six months if you are found guilty of:

- Three speeding and/or misdemeanor traffic violations within 18 months (based on date of violation, not date of conviction).
- Three "passing a stopped school bus" violations within three years.
- One violation of "leaving the scene of a personal injury or fatal accident."
- One "participating in a speed contest" violation. Conviction of a second speed contest violation within 12 months results in a revocation of at least one year.

No Insurance

Your driver license will be revoked for at least one year if you operate or allow another person to operate your uninsured vehicle, or if the DMV receives evidence that you were involved in a traffic crash without being insured. If the insurance coverage for your vehicle has expired, you must turn in the license plates and registration to a motor vehicle office. If the vehicle is removed from the road and not being driven, you must return the plates or you can face civil penalties or registration suspension and/or license suspension.

Indefinite Suspensions/Revocations

Your driver license will also be suspended indefinitely if you fail to file an accident report, fail to pay child support, fail to pay taxes or fail to fulfill a court judgment that results from a traffic accident. This suspension will be in effect until you correct the condition that led to the suspension.

THE POINT SYSTEM

The DMV point system identifies "persistent violators", that is, drivers who commit a series of violations in a short time period. The table in this chapter lists the point values assigned to various moving traffic violations.* Note that traffic laws which must be obeyed on public highways, roads and streets also apply to parking lots open to the public.

While each violation listed alone is not serious enough to require license suspension or revocation, the accumulation of several violations on your driving record can indicate that action must be taken.

*All V&T Law violations result in fines to the driver in addition to license sanctions.